

		determination regarding the amount of the attorneys' fees award will not be made until final approval, the Court is unlikely to approve attorneys' fees in excess of thirty percent (30%) of the GSA absent unique circumstances. As a result, Class Counsel should address whether any such unique circumstances exist. Also at the Final Approval hearing, Class Counsel must also disclose whether counsel has any fee-splitting arrangement with any other counsel, or confirm none exists. Additionally, at the Final Approval hearing, Plaintiffs and Class Counsel must provide detailed declarations describing circumstances to justify the requested enhancement awards and addressing the factors set forth in <i>Golba v. Dick's Sporting Goods, Inc.</i> (2015) 238 Cal.App.4th 1251, 1272, and <i>Clark v. American Residential Services, LLC</i> (2009) 175 Cal.App.4th 785, 804. Each Plaintiff must provide an estimate of the hours spent participating in this litigation. Plaintiffs to give notice of this Court's ruling, including to the LWDA, within five (5) court days, and file proof of service.
111	Hernandez vs. Houdini, Inc. 2021-01212206	Status Conference CONTINUED TO 10/29/26 AT 2PM WITH #112; CMC statement to be filed 10 days in advance. Parties are to address effect of settlement re related RES CASE.
112	Gonzalez vs. Flood Management Services, Inc. 2024-01403048	Motion for Preliminary Approval of Class/PAGA Settlement The Court has reviewed the supplemental materials provided by Class Counsel and finds that they fail to adequately address all the previously identified issues. Accordingly, Plaintiff Michael P. Gonzalez's Motion for Preliminary Approval of Class Action and PAGA Settlement is further CONTINUED to July 30 at 2:00 p.m. in Department CX102 in order to give Class Counsel an opportunity to address the issues identified below. This is a putative wage-and-hour class action and PAGA matter. On 5/31/2024, Plaintiff Michael P. Gonzalez, individually and on behalf of all others similarly situated, filed a class action

complaint against Defendant Flood Management Services, Inc. (ROA #2.) Defendant answered on 8/7/2024. (ROA #14.)

The operative complaint is the first amended complaint, filed on 10/23/2024 pursuant to the parties' stipulation and the court's order, which alleges various Labor Code wage-and-hour violations and unfair business practices, including a claim for PAGA penalties. (ROA #30.) Defendant answered on 11/22/2024. (ROA #34.)

On 9/23/2025, Plaintiff filed the instant Motion for Preliminary Approval of the Class Action and PAGA Settlement, and submitted the Class Action and PAGA Settlement Agreement and Class Notice for the Court's review. The motion seeks preliminary approval of the parties' proposed settlement of Plaintiff's class and PAGA claims for the non-reversionary gross settlement amount (GSA) of \$275,000. The GSA includes \$20,000 allocated for PAGA penalties.

On 2/19/2026, the Court continued the first hearing on the motion and asked Class Counsel to address various issues. Counsel then submitted supplemental materials, including an amended version of the Class Action and PAGA Settlement Agreement ("Amended Settlement Agreement") and an amended Class Notice.

The Court has identified several issues with the supplemental papers, including the Amended Settlement Agreement. Accordingly, the following issues must be addressed by Class Counsel before preliminary approval can be granted:

1. The parties added the following sentence to Paragraph 7.5.1 of the Amended Settlement Agreement: "The Court has final say on the validity and authority of any Requests for Exclusion." However, in ¶ 7.5.2, the following conflicting sentence remains: "The Administrator's determination shall be final and not appealable or otherwise susceptible to challenge."
2. The parties revised ¶ 7.8.4 of the agreement to delete the statement that "[t]he Administrator's decision shall be final and not appealable or otherwise susceptible to challenge" and to add that "[t]he Court may review any decision made by the Administrator regarding such dispute or may accept the Administrator's decision." However, in ¶ 7.6, the following conflicting sentence remains: "The Administrator's determination of each Class Member's allocation of Workweeks and/or Pay Periods shall be final and not appealable or otherwise susceptible to challenge."

Class Counsel must also provide the Court with a further revised Class Notice with the following revisions:

1. Although forms have been provided for opt-outs, objections, and workweek disputes, all forms state that they must be mailed to the administrator, even though the settlement agreement provides for fax and email as options. The administrator's fax number and email address must be provided on the forms.

Class Counsel must also provide a further revised Proposed Order with the following corrections and revisions:

1. The proposed order should reference by name and ROA number all the declaration(s) to which the Settlement Agreement and any amendments thereto are attached, including the further amended settlement agreement that will be required to address the above-listed issues.
2. As this matter is being further continued, counsel must propose a new realistic Final Approval hearing date, again taking into account the deadlines associated with mailing and re-mailing the notice and responses thereto and the documentation required to support final approval (including but not limited to time records or a summary of time spent by Class Counsel so as to enable the Court to evaluate the lodestar and attorneys' fee request; detailed litigation cost breakdowns; an Administrator declaration and invoice; and Plaintiff's declaration to support the enhancement request). As a reminder, the Court usually sets these hearings at least 4 months after preliminary approval. All supporting papers must also be filed at least sixteen (16) court days before the Final Approval hearing date.

Class Counsel must file supplemental papers addressing the Court's concerns no later than sixteen (16) court days prior to the continued hearing date. Counsel must also provide red-lined versions of all revised papers and an explanation of how the pending issues were resolved with precise citation to any corrections or revisions. A supplemental declaration or brief that simply asserts the issues have been resolved is insufficient and will result in a further continuance.

Plaintiff is ordered to give notice of this Court's ruling, including to the LWDA, within five (5) calendar days, and file proof of service.